

Rajasthan Prevention of Juvenile Smoking Act, 1950

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State of Rajasthan - Act

Rajasthan Prevention of Juvenile Smoking Act, 1950

RAJASTHAN

India

Rajasthan Prevention of Juvenile Smoking Act, 1950

Act 6 of 1950

Published on 1 January 1950

Commenced on 1 January 1950

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Rajasthan Prevention of Juvenile Smoking Act, 1950

Act

No. 6 of 1950

(Made by His Highness the Rajpramukh on the 1st day of May, 1950.)

[Published in Rajasthan Gazette (Rajpatra) dated 13-5-1950]

An Act to prevent juveniles from smoking tobacco.

Whereas it is expedient to make provision for the prevention of smoking by juveniles in [the State of Rajasthan]

[Substituted by Act 27 of 1957 (Published in Rajasthan Gazette Extraordinary Part 4A dated 13-8-1957.)

, It is hereby enacted as follows-

1.

Short title, extent and commencement.

(1)

This Act may be called the Rajasthan Prevention of Juvenile Smoking Act, 1950.

(2)

[it shall extend to the whole of the State of Rajasthan,]

[Substituted by ibid and this Act extends to the whole of the state of Rajasthan including Abu, Ajmer & Sunel areas with effect from 1-9-1957 is the date of enforcement of Rajasthan Act No. 27 of 1957.]

(3)

It shall come into force on the 1st day of June, 1950.

2.

Definitions

- In this Act, unless there is anything repugnant in the subject or context-

(i)

'Tobacco' means tobacco in any form and includes any smoking mixture intended as a substitute for tobacco.

(ii)

'Public Place' means any place other than residential quarters to which the public for the time being has access whether on payment or otherwise and includes any public street, bazar, lane, bye-lane, railway station, railway carriage and any conveyance plying on hire.

(iii)

[---]

[Omitted by ibid.]

3.

Penalty for selling tobacco to children

- If any person sells or gives or attempts to sell or give to a person who appears to be under the age of sixteen years, except on the written order of the parent, guardian or employer of such person, any tobacco he shall be liable, on conviction in the case of a first offence to a fine not exceeding twenty-five rupees, in the case of a second offence to a fine not exceeding fifty rupees and in the case of a third and every subsequent conviction to a fine not exceeding one hundred rupees.

4.

Seizure of tobacco being smoked by juvenile in a public place

- If any person, apparently under the age of [sixteen years]

[The age of Juvenile was 16 years and now the age of Juvenile is 18 years as provided in Juvenile Justice (care & Protection of children) 2000 (w.e.f. 1-4-2001)]

, be found smoking or attempting to smoke tobacco in any public place it shall be lawful for any Patel, Lambardar, Teacher of a School or College, Member of a Municipal Committee, Member of a Village Panchayat, Legal Practitioner, Registered Medical Practitioner, Member of Parliament or a State Legislature or Magistrate to seize such tobacco as may be found in his possession and destroy it.

5.

Summary jurisdiction

- Notwithstanding anything contained in the Code of [Criminal Procedure, 1898]

[Now see Code of Criminal Procedure 1973 (2 Of 1974)]

of the Central Legislature [- - -] offences under this Act may be tried by any Magistrate or Bench of Magistrates in the manner provided for summary trial in that Code.

6.

[- - -]

[Omitted by ibid.]

7.

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